

# Devendra Dutt Paliwal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 March 2023 · WRIT - C No. - 7159 of 2023 · **Writ disposed with liberty to object under Clause 6.5.**

## HEADNOTE

Writ against a demand notice for electricity dues of Rs. 88,273 disposed with liberty to file an objection under Clause 6.5 of the Electricity Supply Code, 2005; respondent no. 3 to decide that objection by a speaking order within two weeks.

## FACTUAL SUMMARY

Devendra Dutt Paliwal filed Writ-C No. 7159 of 2023 in the Allahabad High Court against the State of Uttar Pradesh and two others. He challenged a demand notice dated 3 March 2022, issued by respondent no. 3, seeking recovery of electricity dues of Rs. 88,273. Counsel for the Electricity Department told the Court that an objection could be filed against that notice under the Electricity Supply Code, 2005. The order records no connection number, assessment basis, or prior objection.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.5

objection to electricity demand notice

#### HOLDING

A writ challenging a demand notice for electricity dues is met by the efficacious remedy of an objection under Clause 6.5 of the Electricity Supply Code, 2005. The petition is disposed of with liberty to file that objection as prescribed, and respondent no. 3 must then decide it by a speaking order within two weeks. ¶ 1

## PRINCIPLE TAGS

**clause-6.5-alternate-remedy-to-writ** The writ against the 3 March 2022 demand of Rs. 88,273 was disposed because an objection under Clause 6.5 before respondent no. 3 is an efficacious remedy, to be decided by a speaking order within two weeks of filing. ¶ 1

**clause-6.5-statutory-remedy-disputed-bill** The disputed recovery notice was not adjudicated on merits in writ jurisdiction and was left to the Clause 6.5 objection procedure. ¶ 1

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 3 MARCH 2022 FOR RS. 88,273 TOWARDS ELECTRICITY DUES IS CORRECT.

Left to a speaking order of respondent no. 3 if the petitioner files an objection under Clause 6.5. ¶ 1